

4.	Tran v. Coast Community College District 24-1380332	Before the Court at present is a filing by Plaintiff Tom Tran ("Plaintiff"), identified as a "Motion for Continuance," which asks to continue "the trial date" of November 22, 2024. The Motion is DENIED. Although the Motion asked to continue a pending trial date, no trial date had yet or has yet been set in this case. What was pending on 11/22/24, when this Motion was filed, was a Case Management Conference, which has since been reset for 12/13/24. <u>However, from what has been filed by Plaintiff to date, proper service on the named defendant, identified as "Coast Community College District," still has not occurred.</u> What was filed by Plaintiff on 7/29/24, as ROA 12, does not purport to show service by someone who "is not a party to this action." (See <i>C.C.P. § 414.10</i> ["Any person who is at least 18 years of age and not a party to the action" may serve a summons.] [Emphasis added].) Nor does it identify how service was allegedly effectuated, and on whom. It thus does not demonstrate valid service. The Case Management Conference presently scheduled for 12/13/24 is therefore CONTINUED to January 31, 2025. Although Plaintiff is a self-represented litigant, the court must uniformly apply the procedural and substantive rules of the legal system, even as to a self-represented party. (See <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) Plaintiff therefore must comply with the applicable requirements of the <i>Code of Civil Procedure</i> (the "C.C.P.") and with the <i>California Rules of Court</i> (the "C.R.C"). He has not adequately done so here. Plaintiff can consult with the court's self-help center if he has any procedural questions about his case. <i>The Clerk is to give notice of this ruling.</i>
5.	Rico Garcia v. Anahop, Inc. 22-1245449	Defendant Anahop, Inc., dba IHOP's ("Defendant") unopposed Motion to Compel Mental Examination ("IME") of plaintiff Francisco Javier Rico Garcia ("Plaintiff") is GRANTED. An IME is a permissible method of discovery where the plaintiff claims mental and/or emotional injuries. (<i>Civ. Proc. Code §§ 2032.310 and 2032.320</i>.) Here, Plaintiff has claimed several past and ongoing mental/emotional injuries that allegedly resulted from the incidents alleged in the Complaint. (Complaint ¶¶ 42, 62, 72, 82, 92, 103, 112, 116-118.) Plaintiff also indicated in response to written discovery that he suffered from mental/emotional injuries due to the alleged facts of this case. (Valenti

		Decl. ¶ 6, Ex. 2 at FROG Nos. 6.1 – 6.3.) Good cause exists for an IME to be performed on Plaintiff. Although a proper demand for IME was made, Plaintiff refused and/or failed to appear for the examination. Plaintiff does not appear to have issued a formal objection to the demand and did not oppose the present motion. Plaintiff is ordered to appear for an IME before Dr. Judy Ho Gavazza, Ph.D., ABPP, ABPdN, CFMHE, at her office located at 1600 Rosecrans Avenue, Media Center 4th Floor, Manhattan Beach, CA 90266, at a date mutually convenient to Plaintiff and Dr. Ho, but not later than 20-days after the hearing on this motion. The tests and time limit permitted are those listed in the stipulation Defendant offered. (Valenti Decl., Ex. 7.) <i>Defendant to give notice.</i>
6.	Cortez v. Bhatt 23-1320179	Before the Court are three motions to compel compliance with deposition subpoenas filed by Defendant Meet Bhatt d.b.a. WaterMart ("Defendant"). The motions are CONTINUED to January 9, 2025, at 1:30 p.m. in Department C18. There are no proofs of service showing the deposition subpoenas or these motions were served on the nonparty witnesses. No oppositions were filed. It is thus unclear whether the subpoenas and these motions were properly served on the deponents such that compliance can be compelled. (See <i>Code Civ. Proc.</i>, § 2020.220(c); <i>Cal. Rules of Court</i>, rule 3.1346.) Defense counsel states in his declarations in support of the motions that the deposition subpoenas and these motions were served on the nonparty witnesses, but no proofs of service of same are submitted with the moving papers. Accordingly, the motions are CONTINUED as stated above to allow Defendant an opportunity to file proofs of service showing the deposition subpoenas and the moving papers were served on the nonparty witnesses as stated in counsel's declarations. Said proofs of service are to be filed at least 5 court days prior to the hearing. <i>Counsel for Defendant is ordered to give notice of this ruling.</i>
7.	Alimadadian v. M3Live Bar & Grill, Inc. 15-822570	Before the Court at present is the "Joint Motion of Judgment Creditor Cyrus Alimadadian and IRA Resources, Inc. to Remove IRA Resources Inc. as a Judgment Creditor," filed on 7/29/24. The Motion is GRANTED.

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